

Kate Watson

From: EmploymentLaw <EmploymentLaw@dss.gov.au>
Sent: Friday, 31 March 2023 11:08 AM
To: Kate Watson; [REDACTED]
Cc: EmploymentLaw
Subject: RE: Urgent request for assistance - Comcare matter [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

 External email >

 Discusses sensitive information >

Hi Kate

[REDACTED] asked me to respond to your query about Dr Richard William McLean.

Our Workplace Relations team have confirmed the Department has no record of Dr Richard William McLean ever being an employee of DSS.

Kind regards,

[REDACTED]
[REDACTED]
[REDACTED]

Department of Social Services

[REDACTED] 

The Department of Social Services acknowledges the traditional owners of country throughout Australia, and their continuing connection to land, water and community. We pay our respects to them and their cultures, and to Elders both past and present.

From: Kate Watson <Kate.Watson@hbacrawford.com.au>
Sent: Friday, 31 March 2023 10:22 AM
To: [REDACTED]
Cc: EmploymentLaw <EmploymentLaw@dss.gov.au>
Subject: Urgent request for assistance - Comcare matter
Importance: High

Good morning [REDACTED]

I have been provided with your contact details by Comcare, for whom I act in a workers' compensation matter that is due to go to preliminary hearing next Thursday, 6 April 2023.

The preliminary hearing relates to whether Dr Richard William McLean (date of birth: * April 1973) is an 'employee' for the purposes of the *Safety, Rehabilitation and Compensation Act 1988* (SRC Act). Dr McLean has made a claim in relation to purported employment with the NDIS but has also provided a screenshot (attached) as evidence that he is an employee of the Commonwealth (DSS).

Comcare seeks urgent confirmation from DSS as to whether Dr McLean is, or has ever been, an employee of DSS.

Can you please let me know as a matter of urgency whether you are able to provide this information, or direct me to an appropriate person within DSS to make this request.

Please feel free to call me if you have any queries.

Kind regards

Kate Watson

Partner, HBA Legal

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Crawford Australia acknowledges the Traditional Owners of Country throughout Australia and recognises their continuing connection to land, waters and culture. We pay our respects to their Elders past, present and emerging.

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